

Amendment No. 4 to HB0005

Bulso
Signature of Sponsor

AMEND Senate Bill No. 419

House Bill No. 5*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 29-39-102(h), is amended by adding the following as a new subdivision:

(5)

(A) If the defendant violated § 63-6-1103(b) by sending an abortion-inducing drug, as defined in § 63-6-1102, into this state to a patient via courier, delivery, or mail service. Notwithstanding another law to the contrary, if the patient, or other wrongful death beneficiary under § 20-5-106(a), proves by a preponderance of the evidence that the abortion-inducing drug caused the death of a person, as defined in § 20-5-106(d), then the court shall award to the patient, or other wrongful death beneficiary, a judgment of one million dollars (\$1,000,000) in statutory damages against the defendant.

(B) This subdivision (h)(5) does not apply to actions brought against:

(i) A pharmacist, as defined in § 63-10-204;

(ii) A physician, as defined in § 63-6-1102;

(iii) A motor carrier or freight forwarder, as defined in 49 U.S.C. § 13102; or

(iv) An air carrier, as defined in 49 U.S.C. § 40102.

(C) This subdivision (h)(5) does not:

(i) Create a new health care liability action;

- (ii) Modify or expand the standard of care applicable to a healthcare provider;
- (iii) Establish negligence per se for a health care liability action, under title 29, chapter 26, part 1;
- (iv) Alter an evidentiary burden;
- (v) Affect the limitations on the amount of noneconomic damages, as described in subdivision (a)(2) and subsections (b)-(e); or
- (vi) Otherwise expand liability under title 29, chapter 26, part 1.

SECTION 2. Tennessee Code Annotated, Section 29-39-102(m), is amended by deleting the subsection and substituting:

(m) Except as provided in subdivision (h)(5), this chapter does not create or enhance any claim, right of action, civil liability, economic damage, or noneconomic damage under the law in existence prior to July 1, 2026.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to causes of action accruing on or after that date.